

The Board of Education of the Brecksville-Broadview Heights City School District met in REGULAR session on November 18, 2020 with the following members present:

Mrs. Kathleen Mack
Mr. Mark Dosen
Mrs. Ellen Kramer
Mr. Fred Pedersen
Mrs. Brittany Wigman

The Treasurer or Treasurer Pro Tempore, as the case may be, advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following Resolution:

RESOLUTION NO. _____

A RESOLUTION TO ENDORSE THE FAIR SCHOOL FUNDING PLAN, AS INTRODUCED IN THE SENATE COMPANION BILL TO SUBSTITUTE H.B. 305, AND TO ENCOURAGE THE 133RD GENERAL ASSEMBLY TO EXPEDITE THE PASSAGE OF THE BILL.

WHEREAS, the Ohio Supreme Court ruled in *DeRolph v. State of Ohio* (1997) that Ohio's method for funding schools through the state's school foundation program was unconstitutional under Article VI, Section 2 of the Ohio Constitution; and

WHEREAS, in *DeRolph*, the Ohio Supreme Court declared that Ohio's school funding system was over-reliant on local property taxes, and as such, was inherently discriminatory to children based on where they reside for disparities exist between communities of affluence and impoverishment; and

WHEREAS, since the *DeRolph* decision, the Ohio General Assembly has failed to create a funding system that meets Ohio's constitutional standard of securing "... a thorough and efficient system of common schools throughout the state"; and

WHEREAS, Ohio's solution to satisfy the Ohio Supreme Court's order has been to pass a series of biennial budgets containing politically expedient remedies that have not eliminated the over-reliance on local property tax or mitigated the discriminatory nature inherent in the series of "funding fixes" legislated over the last 23 years; and

WHEREAS, Ohio's previous biennial budget crafted by the 132nd Ohio General Assembly, and effective July 1, 2018, through June 30, 2019, created a funding system with "capped" districts, and districts receiving a minimum level of funding referred to as the "guarantee"; and

WHEREAS, the previous biennial budget identified 503 school districts out of 610, or 82%, either "capped" in their funding, or on the "guarantee," which is a testament that Ohio's funding model is not effective; and

WHEREAS, Ohio's current biennial budget crafted by the 133rd General Assembly, froze foundation funding for Ohio schools at 2019 fiscal year levels (effectively placing all districts on "the

guarantee”), which funding levels have subsequently been cut due to the economic impact of the Coronavirus pandemic; and

WHEREAS, the current school funding system in Ohio lacks a rational basis for determining both the cost of educating students and how the funding of education is shared between the state and local taxpayers; and

WHEREAS, Representative Robert Cupp (R) and Representative John Patterson (D) convened a statewide workgroup, made up of eight practicing school district CFO/Treasurers and eight practicing Superintendents (the “Cupp-Patterson Workgroup”), to devise a new formula, and recognizing that Ohio needs an overhaul to its school funding system, have spent the last three years determining the inputs necessary to fund a “thorough and efficient system of common schools” that reduces the over-reliance on local property tax and creates equity in the state foundation system; and

WHEREAS, the Cupp-Patterson Workgroup carefully analyzed national research, best practices, actual Ohio school district spending data, and drew on their own extensive experience in educating students and operating school districts to make recommendations for a school funding system that meets the needs of all Ohio’s students in the 21st century; and

WHEREAS, the Cupp-Patterson Workgroup developed recommendations that laid out a rational, transparent, comprehensive and – most of all – fair system for funding schools based on the actual cost of providing a basic education for all students in Ohio (the “Base Cost”); and

WHEREAS, the Cupp-Patterson Workgroup developed a method of sharing the funding of the Base Cost between the state and local taxpayers that is easy to understand and based on a fair, defensible measure of the capacity to generate funds locally; and

WHEREAS, the Cupp-Patterson Workgroup identified and provided a framework for providing additional resources to meet needs beyond those of basic education, including the areas of the social, emotional, safety, and mental health of students, the additional challenges driven by students living in poverty, with special needs, with limited English proficiency, and who are academically gifted; and

WHEREAS, the Cupp-Patterson Workgroup developed recommendations for properly funding Career Technology Centers, Educational Service Centers, and Charter and Community schools; and

WHEREAS, based on the research and work outlined above, the Cupp-Patterson Workgroup produced and recommended the Fair School Funding Plan, which was introduced in House Bill (H.B.) 305, and is currently incorporated into and improved upon in a companion bill in the Senate, Senate Bill (S.B.) 376; and

WHEREAS, the Ohio General Assembly and the Governor of Ohio have an opportunity to devise a funding formula, as outlined in the Fair School Funding Plan, that is an investment in Ohio’s children and Ohio’s future.

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of the Brecksville-Broadview Heights City School District, that:

Section 1. It is necessary to formally endorse the Fair School Funding Plan, as introduced in S.B. 376 of the 133rd General Assembly (the Senate companion bill to Substitute H.B. 305), to ensure that K-12 schools in Ohio are funded using a rational school funding system that meets the needs of all Ohio’s students in the 21st century.

Section 2. The Treasurer is authorized to deliver or cause to be delivered a certified copy of this Resolution to community leaders; to members of the Ohio House of Representatives and the Ohio Senate, including Representative Phil Robinson and Senator Matt Dolan; and to the office of Governor Michael DeWine.

Section 3. This Resolution shall be in full force and effect immediately upon its adoption.

_____ seconded the motion.

Upon roll call on the adoption of the foregoing Resolution, the vote was as follows:

Mrs. Kathleen Mack
Mr. Mark Dosen
Mrs. Ellen Kramer
Mr. Fred Pedersen
Mrs. Brittany Wigman